

Court No. - 39

Case :- WRIT - C No. - 18752 of 2025

Petitioner :- Sabdar Ali

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Jaichandra Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Arindam Sinha,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Heard Mr. Manoj Pathak holding brief of Mr. Jaichandra Singh, learned counsel for the petitioner and Mr. Raj Mohan Upadhyay, learned Additional Chief Standing Counsel for the State-respondents and Mr. Narendra Kumar Tiwari, learned counsel appearing for the respondent nos.3 and 4.

The present petition has been filed seeking a direction to the respondent-authorities not to install electricity connection for the respondent no.4 from the electricity pole, which the petitioner claims to have been set up on his expenses.

Counsel appearing for the respondent nos.3 and 4 has drawn attention of this Court to Clause 4.29 of the U.P. Electricity Supply Code, 2005, which provides that the licensee may use the service line and other apparatus to give supply to other consumers provided that the supply to the consumer who has paid for them is not affected. It is stated that in drawing the electricity line for the private respondent, the supply of petitioner would not in any manner be affected.

Counsel for the petitioner has submitted that necessary adjustment be made from the expenses initially borne by him for setting up of the supply line, in regard to which the petitioner has already submitted representations.

Having regard to the aforesaid, the respondent-authorities of the supply company are directed to examine the representation submitted by the petitioner and pass an order thereon keeping in mind what has been recorded above.

The writ petition is disposed of.

Order Date :- 25.7.2025/Ashutosh

(Arindam Sinha,J.)

(Dr. Y. K. Srivastava,J.)